

2 March 2021

Dr Rich McLean
2 Mccubbin Street
Footscray VIC 3011

By email: rich@richmclean.com.au

Dear Dr McLean

Case numbers 700088 (Media Super)
747026 (AustralianSuper) & 767480 (TAL Life)
758027 (Bendigo and Adelaide Bank)
785105 (HCF Life Insurance)

I refer to the above complaints which are currently open at AFCA.

AFCA is an independent ombudsman scheme established to fairly and impartially consider complaints consumers and small businesses have with financial firms. Our role is to help facilitate a mutually agreeable outcome between the parties, or if that is not possible, provide a fair outcome based upon the information provided by the parties.

AFCA's Rules

In lodging your complaints at AFCA, you have consented to AFCA considering the complaints in line with our Rules. Rule A.11 relates to confidentiality, and says that:

- AFCA operates on a 'without prejudice' basis
- save for limited circumstances, the parties must maintain the confidentiality of all information provided to them through the course of the complaint.

Further information about Rule A.11 is at the end of this letter.

Your recent correspondence for cases 747026 and 767480

As Senior Manager – Superannuation, my responsibility covers the operational management of Superannuation complaints. Part of my role is to ensure the safety and wellbeing of our people and to ensure that our stakeholders deal in a respectful way.

I have reviewed the email you sent to the case worker of cases 747026 and 767480 on 16 February 2021. I am concerned to read that you have threatened to add the case worker's details to your publicly available website if the case is not found in your favour.

This position is inconsistent with the consent you provided to AFCA to consider your complaints.

We need your commitment before we can progress your complaints

I acknowledge that financial complaints can be very stressful and affect peoples' lives in significant ways. However, your position of adding the case worker's details to your website is inconsistent with the:

- consent you provided to AFCA to consider your complaints
- the way we expect parties to engage in AFCA's complaint resolution process.

Given this, before we continue handling any of your currently open AFCA complaints further, we require you to confirm in writing that you will not name AFCA case workers on your website. Please provide this written commitment to me by close of business **Tuesday 9 March 2021**.

If I do not receive this commitment from you, we will have no choice but to close all your currently open AFCA complaints. I do appreciate the serious consequences if we close your complaints. However, we expect you to engage with us and our complaints process in a respectful and productive way.

You may wish to consider being represented by a third party

If you prefer, you may wish to appoint a representative to deal with your complaints at AFCA, such as a family member or friend.

You may also wish to connect with community-based organisations which offer a wide range of services which are free, confidential and independent. These organisations provide advice and act as a customer advocate and include the National Debt Helpline and Legal Aid Commissions. I have attached further details of these services at the end of this letter.

If you choose to appoint an authorised representative to deal with us on your behalf, you will need to sign and have them send us the authority form included with this letter.

The community-based organisations can not only provide you support as a representative, they can also offer you referrals that may benefit you in other aspects of your life.

I look forward to hearing from you by close of business **Tuesday 9 March 2021**.

Yours sincerely

A handwritten signature in black ink, appearing to read 'P Fisher', with a stylized flourish at the end.

Peter Fisher
Senior Manager - Superannuation
Australian Financial Complaints Authority

National Debt Helpline - <https://ndh.org.au/> - 1800 007 007

Legal Aid Victoria - <https://www.legalaid.vic.gov.au/> - 1300 792 387